

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jacqueline Levy(F)	Team: Team # 1	CCRB Case #: 201404234	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 04/27/2014 9:45 PM, Thursday, 05/01/2014 12:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/27/2015	Precinct: 52		
Date/Time CV Reported Fri, 05/02/2014 9:14 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 05/02/2014 9:14 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Carlos Lozada	01174	930601	NARCB BX
2. SGT Joseph Orecchio	04343	933124	NARCB BX
3. DT3 Thomas Woods	07089	923384	NARCB BX
4. DT3 Daniel Mahoney	06505	943509	NARCB BX
5. An officer			NARCB BX

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Thomas Woods	Abuse: On April 27, 2014, at § 87(2)(b) in the Bronx, Det. Thomas Woods stopped § 87(2)(b)	A . Unsubstantiated
B . DT3 Carlos Lozada	Abuse: On April 27, 2014, at § 87(2)(b) in the Bronx, Det. Carlos Lozada stopped § 87(2)(b) and an individual.	B . Unsubstantiated
C . SGT Joseph Orecchio	Abuse: On April 27, 2014, at § 87(2)(b) in the Bronx, Sgt. Joseph Orecchio supervised the stop of § 87(2)(b) and an individual.	C . Unsubstantiated
D . DT3 Thomas Woods	Abuse: On April 27, 2014, at § 87(2)(b) in the Bronx, Det. Thomas Woods frisked § 87(2)(b)	D . Substantiated
E . DT3 Thomas Woods	Abuse: On April 27, 2014, at § 87(2)(b) in the Bronx, Det. Thomas Woods searched § 87(2)(b)	E . Unsubstantiated
F . DT3 Carlos Lozada	Abuse: On April 27, 2014, at § 87(2)(b) in the Bronx, Det. Carlos Lozada frisked § 87(2)(b)	F . Substantiated
G . DT3 Carlos Lozada	Abuse: On April 27, 2014, at § 87(2)(b) in the Bronx, Det. Carlos Lozada searched § 87(2)(b)	G . Unsubstantiated
H . SGT Joseph Orecchio	Abuse: On April 27, 2014, at § 87(2)(b) in the Bronx, Sgt. Joseph Orecchio frisked an individual.	H . Unsubstantiated
I . SGT Joseph Orecchio	Abuse: On April 27, 2014, at § 87(2)(b) in the Bronx, Sgt. Joseph Orecchio searched an individual.	I . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
J . DT3 Carlos Lozada	Abuse: On April 27, 2014, Det. Carlos Lozada entered and searched § 87(2)(b) in the Bronx.	J . Unsubstantiated
K . SGT Joseph Orecchio	Abuse: On April 27, 2014, Sgt. Joseph Orecchio entered and searched § 87(2)(b) § 87(2)(b) in the Bronx.	K . Unsubstantiated
L . DT3 Thomas Woods	Abuse: On April 27, 2014, Det. Thomas Woods entered and searched § 87(2)(b) § 87(2)(b) in the Bronx.	L . Unsubstantiated
M . DT3 Carlos Lozada	Abuse: On May 1, 2014, at § 87(2)(b) in the Bronx, Det. Carlos Lozada refused to provide his name to § 87(2)(b)	M . Unsubstantiated
N . An officer	Abuse: On May 1, 2014, at § 87(2)(b) in the Bronx, an officer questioned § 87(2)(b)	N . Alleged Victim Uncooperative
[REDACTED]	§ 87(4-b) § 87(2)(g)	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Case Summary

On April 27, 2014, at approximately 9:45 p.m., Det. Thomas Woods of Narcotics Borough Bronx (NBBX) stopped § 87(2)(b) and Det. Carlos Lozada of NBBX stopped § 87(2)(b) and an individual known as § 87(2)(b) at § 87(2)(b) in the Bronx, a Clean Halls building, while under the supervision of Sgt. Joseph Orecchio of NBBX (**Allegations A, B, and C**). Once all three civilians were outside the building in the alleyway, Det. Woods frisked § 87(2)(b) (**Allegation D**) and allegedly searched him (**Allegation E**). Det. Lozada frisked § 87(2)(b) (**Allegation F**) and allegedly searched him (**Allegation G**). Sgt. Joseph Orecchio of NBBX allegedly frisked and searched § 87(2)(b) (**Allegations H and I**). Det. Lozada, Sgt. Orecchio, and Det. Woods allegedly entered and searched § 87(2)(b) bedroom in § 87(2)(b) in the Bronx (**Allegations J, K, and L**). No Stop and Frisk reports were prepared (**Allegation O**) and § 87(2)(b) and § 87(2)(b) were released without being summonsed or arrested. § 87(4-b) § 87(2)(g)

On May 1, 2014, at approximately 3:30 p.m., Det. Lozada stopped § 87(2)(b) after he made an illegal U-turn on § 87(2)(b) in the Bronx. § 87(2)(b) was the front passenger in his car. Det. Lozada allegedly refused to provide his name when § 87(2)(b) requested it (**Allegation M**). An officer allegedly requested § 87(2)(b) identification and asked her if the address on it was hers (**Allegation N**). Neither § 87(2)(b) nor § 87(2)(b) were summonsed or arrested (complaint encl. 5A-C, CCRB statements encl. 6A-U; 7A-Y; 8; 9A-D).

§ 87(4-b) § 87(2)(g)

While there is no video of the incident, there is a video of the incident location (encl. 26B).

§ 87(2)(g)

Mediation, Notice of Claim, and Criminal Histories

This case was eligible for mediation; however, § 87(2)(b) rejected mediation. As of January 14, 2015, § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim in regards to these incidents (encl. 27) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by or involving § 87(2)(b) and § 87(2)(b) (encl. 3A-C).
- Det. Woods has been a member of the service for 16 years and there are five substantiated CCRB allegations and one strip-search allegation added by the Police Department against him (encl. 2A-C). In case number 200717883, a force allegation was substantiated and command discipline was recommended. The NYPD declined to prosecute the force allegation and added a strip-search allegation for which Det. Woods received instructions. In case number 201302680, a frisk and search were substantiated and charges were recommended. The case is pending with the Administrative Prosecution Unit. In case number 201404504, a vehicle stop and a frisk were substantiated and command discipline was recommended. Det. Woods received instructions. Det. Woods has several frisk and search allegations that were

unsubstantiated and closed as victim uncooperative.

- Det. Lozada has been a member of the service for 12 years and there are three substantiated CCRB allegations against him (encl. 2D-E). In case number 201002757, stop, frisk, and search allegations were substantiated and charges were recommended. The NYPD declined to prosecute the stop and the search; Det. Lozada received instructions for the frisk.
- Sgt. Orecchio has been a member of the service for 11 years and there are no substantiated CCRB allegations against him (encl. 2F).
- Det. Mahoney has been a member of the service for eight years and there are two substantiated CCRB allegations against him (encl. 2G-H). In case number 200910763, threat of force and discourtesy allegations were substantiated and charges were recommended. The NYPD declined to prosecute.

Findings and Recommendations

Explanation of Identification of Subject Officers

Though Det. Woods and Det. Lozada did not recall seeing § 87(2)(b) and Sgt. Orecchio did not recall interacting with him, § 87(2)(b) and § 87(2)(b) were consistent in their descriptions of which officer stopped, frisked, and searched each of them. Det. Woods admitted to stopping and frisking § 87(2)(b) and Det. Lozada admitted to stopping two civilians and frisking at least one of the civilians, though he could not recall who. Sgt. Orecchio was the supervisor on the scene and was initially involved in the stop of two civilians and subsequently observed all three civilians on the scene. All of the officers entered and searched the location. § 87(2)(g)

§ 87(2)(b) identified Det. Lozada by description as the subject of the refusal to provide name allegation. § 87(2)(g) § 87(2)(b) was unable to describe the officer who asked her for identification and then asked her questions but described Det. Lozada as the officer who spoke to § 87(2)(b) and thus not her. § 87(2)(b) stated that Det. Lozada asked § 87(2)(b) for her identification but he did not see § 87(2)(b) provide her identification. § 87(2)(b) also said that there were at least three police vehicles present. Det. Mahoney denied interacting with § 87(2)(b) and he and Det. Lozada stated that no other officers responded. There were 10 white and Hispanic males on the Narcotics Borough Bronx tactical plans that were in the vicinity, including Sgt. Orecchio and Det. Lozada (encl. 19; 21B-C). None of the vehicles that they were assigned to match the vehicles described by § 87(2)(b) § 87(2)(g)

Allegations Not Pled

§ 87(2)(g)

Allegation A – Abuse of Authority: On April 27, 2014, at § 87(2)(b) in the Bronx, Det. Thomas Woods stopped § 87(2)(b)

Allegation B – Abuse of Authority: On April 27, 2014, at § 87(2)(b) in the Bronx, Det. Carlos Lozada stopped § 87(2)(b) and an individual.

Allegation C – Abuse of Authority: On April 27, 2014, at § 87(2)(b) in the Bronx, Sgt. Joseph Orecchio supervised the stop of § 87(2)(b) and an individual.

It is undisputed that Det. Woods stopped § 87(2)(b) as he was walking toward the exit of the alleyway, asked whether he resided at the location, which is a Clean Halls building, and brought him back down the alleyway.

§ 87(2)(b) and § 87(2)(b) stated that § 87(2)(b) had been talking to § 87(2)(b) at his residence for approximately 10 minutes prior to leaving and encountering Det. Woods; § 87(2)(b) had been home prior to that (encl. 6A-H; 7A-H). § 87(2)(b) stated that after talking to § 87(2)(b) outside, § 87(2)(b) and § 87(2)(b) were then stopped in § 87(2)(b) doorway (see photo encl. 4C-D), while § 87(2)(b) stated that Det. Lozada knocked on his door (see photo encl. 4H, 4K) and then ordered § 87(2)(b) and § 87(2)(b) into the alleyway. § 87(2)(b) was unavailable to the investigation (encl. 10).

Det. Woods stated that the officers observed § 87(2)(b) walk into the alleyway minutes prior to interacting with him. Det. Woods had never seen § 87(2)(b) prior to the incident but another member of his team recognized § 87(2)(b) and identified him to Det. Woods by phone or by radio. Det. Woods knew that § 87(2)(b) had been the subject of a search warrant where drugs and possibly ammunition were recovered, though he recalled the search warrant as being executed days prior rather than months prior (see arrest report stemming from the search warrant encl. 20A-C). Det. Woods then saw § 87(2)(b) enter and then exit the alleyway. When the officers approached her, she dropped glassines of heroin to the ground and stated that she bought the heroin from males in the alleyway. Det. Woods stopped § 87(2)(b) who Det. Woods encountered leaving the alleyway while Det. Woods was entering. He asked § 87(2)(b) if he lived in the building and § 87(2)(b) answered in the negative. § 87(2)(b) and § 87(2)(b) were stopped by other officers as they exited the building (encl. 16A-D).

Sgt. Orecchio similarly stated that he saw § 87(2)(b) who he recognized from prior interactions, enter the alleyway. He was aware of the prior search warrant. He saw § 87(2)(b) enter and exit the alleyway and then drop glassines of heroin when the officers approached her. § 87(2)(b) stated that two males in the alleyway had sold her the drugs. After entering the alleyway, § 87(2)(b) and § 87(2)(b) exited the building, startling the officers. Det. Woods stopped § 87(2)(b) near the exit of the alleyway, though Sgt. Orecchio did not recall how he did so. Det. Lozada and Sgt. Orecchio stopped § 87(2)(b) further down the alleyway. There was a third male § 87(2)(b) present at some point, but Sgt. Orecchio did not recall any interaction with him (encl. 14A-C).

Det. Lozada stated that he saw § 87(2)(b) walk toward the location but from his vantage point, could not see him enter the alleyway. Det. Lozada did not mention seeing § 87(2)(b) and stated that he was informed of the arrest over the radio. After entering the alleyway, § 87(2)(b) and § 87(2)(b) exited the building, surprising the officers. § 87(2)(b) and § 87(2)(b) were stopped and immediately frisked. Det. Lozada did not recall § 87(2)(b) being present (encl. 12A-D).

Attempts to contact § 87(2)(b) to verify the circumstances that preceded the stop were unsuccessful (encl. 10).

§ 87(2)(g)

Therefore, it is recommended that **allegations A, B, and C be unsubstantiated.**

Allegation D – Abuse of Authority: On April 27, 2014, at § 87(2)(b) in the Bronx, Det. Thomas Woods frisked § 87(2)(b)

Allegation F – Abuse of Authority: On April 27, 2014, at § 87(2)(b) in the Bronx, Det. Carlos Lozada frisked § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) alleged that Det. Woods frisked § 87(2)(b) and Det. Lozada frisked § 87(2)(b) outside the building after they were stopped. § 87(2)(b) also alleged that Det. Lozada initially frisked him while they were still inside the building.

Det. Woods stated that he frisked § 87(2)(b) immediately after bringing him back down the alleyway. He thought § 87(2)(b) may have had a weapon because Det. Woods had previously made an arrest for gun possession at the location, because § 87(2)(b) was suspected of selling drugs and drug dealers carry guns, and because § 87(2)(b) had initially attempted to push past him to exit the alleyway. Det. Woods stated that he found a knife on § 87(2)(b) however, he noted that he did not see a bulge or any evidence of the knife prior to conducting the frisk. Though Det. Woods noted that § 87(2)(b) acted in a nervous manner in that his body was shaking and he voluntarily showed Det. Woods items from his pockets, this occurred after the frisk and therefore could not have factored into Det. Woods' decision to frisk § 87(2)(b) (encl. 16A-D).

Det. Lozada stated that he frisked § 87(2)(b) because of his history of possessing ammunition as discovered during the search warrant, because § 87(2)(b) surprised him by opening the apartment door and entering the alleyway, which was poorly lit, and because there had been shootings within three or four blocks of the location in the prior five or six months (encl. 12A-D).

Sgt. Orecchio stated that he believed that § 87(2)(b) may have had the gun that was not recovered during the search warrant on him (encl. 14A-C); as noted above, ammunition was recovered pursuant to that search warrant (see encl. 20A-C). Sgt. Orecchio also noted that he observed § 87(2)(b) initially walking quickly towards the exit of the alleyway after exiting the building (encl. 14A-C).

Reasonable suspicion that an individual is a danger to an officer or civilian by virtue of being armed is required for an officer to justify frisking the individual. People v. Forrest, 77 A.2d. 511 (1st Dept. 2010) (encl. 1A). Founded suspicion of drug activity does not give rise to such reasonable suspicion. Id. Nervous behavior is insufficient to raise an officer's level of suspicion. People v. Alvarez, 16 Misc.3d 1118(A) (Sup. Ct. Bx. Cty. 2007) (encl. 1B-G).

The officers suspected that § 87(2)(b) and § 87(2)(b) were armed because, according to the officers' testimony, they surprised them, § 87(2)(b) tried to push past Det. Woods, gun arrests had been made at that location over the past months and years, and drug dealers usually have weapons. At some point after the frisk, Det. Woods also suspected that § 87(2)(b) had a weapon because he appeared nervous. Sgt. Orecchio and Det. Lozada noted that § 87(2)(b) had been known to be in possession of ammunition. § 87(2)(g)

Based on the foregoing, it is recommended that **allegations D and F be substantiated.**

Allegation E – Abuse of Authority: On April 27, 2014, at § 87(2)(b) in the Bronx, Det. Thomas Woods searched § 87(2)(b)

Allegation G – Abuse of Authority: On April 27, 2014, at § 87(2)(b) in the Bronx, Det. Carlos Lozada searched § 87(2)(b)

Allegation H – Abuse of Authority: On April 27, 2014, at § 87(2)(b) in the Bronx, Sgt. Joseph Orecchio frisked an individual.

Allegation I – Abuse of Authority: On April 27, 2014, at § 87(2)(b) in the Bronx, Sgt. Joseph Orecchio searched an individual.

§ 87(2)(b) and § 87(2)(b) alleged that Det. Woods reached into § 87(2)(b)'s pockets, Det. Lozada reached into § 87(2)(b) pockets, and Sgt. Orecchio frisked § 87(2)(b) and reached into his pockets (encl. 6A-U; 7A-U). The officers did not recall doing so (encl. 12A-D; 14A-C; 16A-D), though Det. Woods stated that at some point, he recovered an industrial-grade razor/knife from § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

it is recommended that allegations E, G, H, and I be unsubstantiated.

Allegation J – Abuse of Authority: On April 27, 2014, Det. Carlos Lozada entered and searched § 87(2)(b) § 87(2)(b) in the Bronx.

Allegation K – Abuse of Authority: On April 27, 2014, Sgt. Joseph Orecchio entered and searched § 87(2)(b) § 87(2)(b) in the Bronx.

Allegation L – Abuse of Authority: On April 27, 2014, Det. Thomas Woods entered and searched § 87(2)(b) § 87(2)(b) in the Bronx.

It is undisputed that Det. Lozada, Sgt. Orecchio, and Det. Woods entered § 87(2)(b)

§ 87(2)(b) § 87(2)(g)

The apartment has two entrances – one through the main courtyard and one through the side alley, which has a downward slope. Upon entering through the door in the alley, there is an unfinished room with various items stored in it. The room to the left also contains supplies rather than evidence of a dwelling. The bathroom and shower are in two separate rooms behind wooden doors in that room. Beyond that room is § 87(2)(b) bedroom, which contained a bed and a dresser (see video, and encl. 4C-L, 26B).

§ 87(2)(b) alleged that he saw Det. Lozada enter his bedroom and saw Det. Woods and Sgt. Orecchio walk in the direction of his bedroom, but that he could not see where they went. He stated that when he returned to his room, he was unable to tell whether or not anything had been moved. § 87(2)(b) stated that he saw the officers walk in the direction of § 87(2)(b) room. § 87(2)(b) stated that she saw at least one officer walk in the direction of § 87(2)(b) bedroom, but she could not see the doorway of the bedroom, nor could she identify which officer she saw (encl. 9A-C).

Det. Woods, Det. Lozada, and Sgt. Orecchio all stated that the area they entered resembled a common basement area where a super would store items such as cleaning supplies. They also stated that there was a bed in the room but that it was behind a curtain. They denied that there was any evidence of anyone residing in the area they entered.

§ 87(2)(g)

An otherwise improper search may be permissible if it was based on a reasonable mistake as to a relevant fact. People v. Abdul-Akim, 27 Misc.3d 1220(A), 19 (Sup. Ct. Kings Cty. 2010) (encl. 1H-P). See also Heien v. North Carolina, 135 S.Ct. 530, 534 (2014) (encl. 1Q-AA). An individual has no expectation of privacy in a basement room accessible from a lobby, even when the individual was found lying on a mattress in that room with clothing on the floor. People v. Phillips, 118 A.D.2d 600, 601 (2nd Dept. 1986) (encl. 1BB-CC).

§ 87(2)(g)

it is recommended that allegations J, K, and L be unsubstantiated.

Allegation M – Abuse of Authority: On May 1, 2014, at § 87(2)(b) in the Bronx, Det. Carlos Lozada refused to provide his name to § 87(2)(b)

§ 87(2)(b) alleged that he asked Det. Lozada for his name and Det. Lozada walked away

without providing it (encl. 6A-H). Det. Lozada did not recall hearing § 87(2)(b) ask for his name (encl. 12A-D). Det. Mahoney did not hear the conversation between Det. Lozada and § 87(2)(b) (encl. 18A-B). § 87(2)(b) did not indicate that she heard § 87(2)(b) ask Det. Lozada for his name (encl. 8). § 87(2)(g) it is recommended that **allegation M be unsubstantiated.**

Allegation N – Abuse of Authority: On May 1, 2014, at § 87(2)(b) in the Bronx, an officer questioned § 87(2)(b)

§ 87(2)(b) alleged that she was asked for identification and after providing it, she was asked questions about the address that appeared on her identification (encl. 8). After providing a telephone statement, § 87(2)(b) chose to not cooperate with the investigation any further (encl. 10). § 87(2)(g)

Therefore, it is recommended that **allegation N be closed as victim uncooperative.**

§ 87(4-b) § 87(2)(g)

Team: 1

Investigator: _____ Jacqueline Levy _____
Signature Print Date

Supervisor: _____

	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date